

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION OF THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, DECLARING A VACANCY IN THE OFFICE OF A CITY COUNCIL MEMBER FOR WARD I AND ESTABLISHING PROCEDURES FOR FILLING SAID VACANCY.”

WHEREAS, pursuant to Wyoming Statutes § 15-1-107, a vacancy on the city council occurs upon the death of a sitting member of the governing body;

WHEREAS, the Honorable Scott Roybal, duly elected Councilmember representing Ward I of the City of Cheyenne, was discovered to have passed away on September 26, 2025, thereby creating a vacancy in the office;

WHEREAS, Councilmember Roybal was one of the longest tenured members in the City’s history, serving a total of fifteen (15) years on the Governing Body;

WHEREAS, throughout his tenure, Councilmember Roybal was deeply passionate about his community and dedicated to serving all who call Cheyenne home, consistently demonstrating integrity, compassion, and commitment to public service;

WHEREAS, he will be remembered not only for his distinguished record of service but also as an exemplary colleague, a strong advocate for Ward I, and a dedicated public servant whose contributions have left a lasting impact on the City of Cheyenne;

WHEREAS, in light of his passing and the vacancy created in the office, it is incumbent upon the Governing Body to follow the provisions of law to ensure continued representation for the residents of Ward I;

WHEREAS, Section 2.04.040 of the Cheyenne City Code provides that the Governing Body must adopt a resolution declaring that a vacancy exists before filling such office, and further prescribes the procedure by which the vacancy shall be filled;

WHEREAS, Section 2.04.040 requires the councilmembers from the affected ward to nominate and submit a candidate for consideration and approval by majority vote of the Governing Body, with the President of the City Council responsible for establishing the timeframe for such submission; and

WHEREAS, the Governing Body recognizes its duty to ensure continuity of representation for the residents of Ward I and to act in accordance with the procedures prescribed by law.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the office of City Councilmember for Ward I, previously held by the Honorable Scott Roybal, is hereby declared vacant, effective as of September 26, 2025;

BE IT FURTHER RESOLVED that in accordance with Section 2.04.040 of the Cheyenne City Code:

- i. The remaining council members from Ward I shall select and submit a nominee from that ward for the approval and appointment by a majority of the Governing Body to fill the vacancy.
- ii. Should the Ward I representatives be unable to agree on a single nominee, each representative may submit a separate name, and the Governing Body shall appoint one of the nominees by majority vote.
- iii. Notwithstanding, all nominees must meet the legal qualifications required for holding the office of City Councilmember.

BE IT FURTHER RESOLVED that, in accordance with Section 2.04.040(C) of the Cheyenne City Code, the President of the City Council hereby establishes a period of not more than thirty (30) calendar days from the effective date of this Resolution as the timeframe within which the name or names of proposed appointees shall be submitted to the Governing Body; and

BE IT FINALLY RESOLVED, that upon timely submission, the Governing Body shall consider the nomination or nominations at a regular or special meeting and appoint by majority vote a qualified individual to serve as Councilmember for Ward I for the remainder of the unexpired term.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk